

**BOROUGH OF RAMSEY
MAYOR AND COUNCIL
REGULAR SESSION AGENDA
Second Floor Council Chambers
Wednesday, October 22, 2025
7:00pm**

**This meeting is also being conducted telephonically
Dial-In Number (425)436-6365 Access Code 213563#**

**The meeting may also be viewed on Ramsey YouTube Channel
https://www.youtube.com/channel/UCeBnVXBwSn_ILMuAGkSin9w**

I. ROLL CALL – FLAG SALUTE – OPEN PUBLIC MEETING LAW NOTICE

II. APPROVAL OF MINUTES – WS 10-08-25

III. COMMUNICATIONS -

- 1. Melissa Oratio, Senior Administrative Assistant, Northwest Bergen County Utilities Authority, 30 Wyckoff Avenue, Waldwick, NJ 07463
e-mail dated October 10, 2025, attaching agendas for the October 15th NBCUA meeting.**
- 2. Francis K. O'Connor, Commissioner, New Jersey Department of Transportation, Trenton, NJ
letter dated announcing the acceptance of applications for Fiscal Year 2026**

IV. PUBLIC COMMENT

Anyone wishing to address the governing body please give your name (spelling the last name) and address. Please speak in an audible tone and address your comments to the Chair. There will be a five-minute time limit per speaker, unless reduced because of the volume of business on the agenda. Please note, public comment is your time. Out of respect and fairness to all, there will be no interruptions or questions answered during your time. No time shall be ceded to anyone else and no time shall be saved for later use. Any responses may be given during the governing body's comments later in the meeting, or as directed by the Chair. The Borough Clerk is the official time keeper.

V. ADVERTISED PUBLIC HEARING FOR FINAL CONSIDERATION OF ORDINANCES

ORDINANCE 23-2025 -AN ORDINANCE AMENDING CHAPTER 7 OF THE CODE OF THE BOROUGH OF RAMSEY, BERGEN COUNTY, NEW JERSEY AND MORE PARTICULARLY SECTION 7-32 THEREOF ENTITLED MID-BLOCK CROSSWALKS

VI. APPOINTMENTS

Nathaniel Bergren, Ramsey Rescue Squad

Vivienne Verlinden, Ramsey Rescue Squad, Explorer Member

VII. CONSENT RESOLUTION

BE IT RESOLVED that the following resolutions herewith listed having been considered by the governing body of the Borough of Ramsey be and are hereby passed and approved:

- | | | |
|-----------------|--------------------|--|
| 180-2025 | Resolution: | payment of vouchers |
| 181-2025 | Resolution: | ratifying the actions of the governing body for payroll twenty-one |
| 182-2025 | Resolution: | authorizing the Borough to enter into a contract addendum with Teamsters Local 469 to offer an additional health insurance option to employees incorporating the Difference Card HRA in conjunction with the New Jersey State Health Benefit Program. |
| 183-2025 | Resolution: | authorizing the Borough to enter into a contract addendum with Teamsters Local 11 to offer an additional health insurance option to employees incorporating the Difference Card HRA in conjunction with the New Jersey State Health Benefit Program. |
| 184-2025 | Resolution: | authorizing the Borough to enter into a contract addendum with Teamsters Local 125 to offer an additional health insurance option to employees incorporating the Difference Card HRA in conjunction with the New Jersey State Health Benefit Program. |
| 185-2025 | Resolution: | authorizing the Borough to enter into a contract addendum with Policemen's Benevolent Association Local 155 to offer an additional health insurance option to employees incorporating the Difference Card HRA in conjunction with the New Jersey State Health Benefit Program. |
| 186-2025 | Resolution: | authorizing the Borough to enter into a contract addendum with United Public Service Employees Union (Borough Hall White Collar) to offer an additional health insurance option to employees incorporating the Difference Card HRA in conjunction with the New Jersey State Health Benefit Program. |

VII. CONSENT RESOLUTION (cont'd)

- | | | |
|-----------------|--------------------|--|
| 187-2025 | Resolution: | authorizing the Borough to enter into a contract addendum with United Public Service Employees Union (Library) to offer an additional health insurance option to employees incorporating the Difference Card HRA in conjunction with the New Jersey State Health Benefit Program. |
| 188-2025 | Resolution: | appointing EB Employee Solutions, LLC, d/b/a as The Difference Card to Provide HRA Services for Borough of Ramsey Difference Card |
| 189-2025 | Resolution: | confirming the appointment of Nathaniel Bergren to the Ramsey Rescue Squad |
| 190-2025 | Resolution: | confirming the appointment of Vivienne Verlinden to the Ramsey Rescue Squad as an Explorer Member |
| 191-2025 | Resolution: | Best Practice inventory check list 2025 |
| 192-2025 | Resolution: | authorizing the borough to enter into an agreement with govdeals.com for sale by auction of borough vehicles |

BE IT FURTHER RESOLVED that the following applications and/or recommendations hereby be approved:

A. SPECIAL PERMITS:

B. BLOCK PARTY REQUESTS:

VIII. SPECIAL PRESENTATIONS

Volunteer Recognition Night

**Oath of Office – Chief Michael Parise
Captain Casey Hines**

IX. COMMITTEE AND LIAISON REPORTS

A. FINANCE AND ADMINISTRATION – Councilman Michael Gutwetter
1. Various Comments

B. PUBLIC SAFETY – Councilman Peter Kilman
1. Various Comments

C. BUILDING, PLANNING & ZONING – Councilwoman Jane Woods
1. Various Comments

D. UTILITIES, BUILDINGS & GROUNDS – Councilwoman Judy Cusick
1. Various Comments

E. PUBLIC & GOVERNMENTAL RELATIONS – Councilwoman Sara Poppe
1. Various Comments

F. HEALTH, EDUCATION & SOCIAL SERVICES – Councilman Glen Popolo
1. Various Comments

G. MAYOR DEIRDRE DILLON

H. BOROUGH ADMINISTRATOR – Bruce Vozeh

I. BOROUGH ATTORNEY – Peter A. Scandariato, Esq.

J. BOROUGH CLERK – Meredith Bendian

X. INTRODUCTION OF ORDINANCES

**ORDINANCE 24-2025 - AN ORDINANCE AMENDING CHAPTER 7 OF THE
CODE OF THE BOROUGH OF RAMSEY, BERGEN COUNTY, NEW JERSEY SO
AS TO ESTABLISH SECTION 7-45 ENTITLED SKATEBOARDS, SCOOTERS,
MOTORIZED VEHICLES OR DEVICES**

XI. UNFINISHED BUSINESS

XII. NEW BUSINESS

XIII. ADJOURNMENT

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

PLEASE TAKE NOTICE the Northwest Bergen County Utilities Authority does hereby notify the public that the Work Session and the Regular Meeting scheduled for Wednesday, October 15, 2025 at 7:00 p.m. will be held at the Authority's offices located at 30 Wyckoff Avenue, Waldwick, New Jersey. The agenda will include but not be limited to commissioner reports, the payment of regular bills, resolutions, and any other items which may come before the board. Formal action will be taken. The agendas will be placed on the Authority website, nbcua.com, at least 48 hours prior to the meeting.

Northwest Bergen County
Utilities Authority

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

WORK SESSION AGENDA

SUBJECTS FOR DISCUSSION

October 15, 2025

1. Meeting called to Order
2. Open Public Meetings Act Statement
3. Roll Call:

Commissioners: Frank Kelaher

Matthew Jordan
John P. Biale
Dennis Bonagura
Stephen LoIacono
Berge Tombalakian
Yogi Virk

4. Chairman's Remarks

5. COMMITTEES:

A. Finance Committee: Stephen Lo Iacono, Chair

1. Approval of vouchers, payroll transfers, payroll tax deposits and pensions and benefits transfers for July 2025 (Resolution 74-2025)
2. Introduction to the 2026 Authority Budget Resolution (75-2025)

B. Personnel Committee: Matthew Jordan, Chair

1. Personnel Action (Resolution 78-2025)

C. Insurance Committee: Stephen LoIacono

D. Operating Committee: Berge Tombalakian, Chair

1. Operating Committee Report

E. Strategic Plan Committee: Dennis Bonagura, Chair

F. Buildings & Grounds Committee:

G. General Counsel: Douglas Bern, Esq.

1. Monthly Counsel Report

H. Consulting Engineer: T&M Associates

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

1. Monthly Engineer Report

I. Executive Director: Robert Laux

1. Authorization to Amend an Agreement with Tighe & Bond to Provide Engineering Services (Resolution 77-2025)
2. Motion to Approve NJLM Annual Conference and AEA Annual Conference (Motion 25-01)

J. Authority Engineer: Howard Hurwitz

1. Committed Flow Report

K. Superintendent: Robert Genetelli

1. Authorization To Approve the Sewer Connection for Premises Located at the New Street Water Treatment Facility, Veolia Water New Jersey, Inc. 98-101 New Street, Block 2101 Lot 4, Borough of Allendale, NJ (Resolution 76-2025)
2. Authorization to Amend the Not To Exceed for CP Engineering to Provide Engineering Services (Project 1176) (Resolution 79-2025)
3. Awarding a Contract to J. Fletcher Creamer and Son Inc. for Contract No. 344 Force Main and Air Valve Replacement (Resolution 80-2025)
4. Update – Safety and IPP Programs
5. NJPDES Permit Conformance Report
6. Sludge Metal Analysis

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

Northwest Bergen County Utilities Authority

PLEASE TAKE NOTICE the Northwest Bergen County Utilities Authority does hereby notify the public that the Work Session and the Regular Meeting scheduled for Wednesday, October 15, 2025 at 7:00 p.m. will be held at the Authority's offices located at 30 Wyckoff Avenue, Waldwick, New Jersey. The agenda will include but not be limited to commissioner reports, the payment of regular bills, resolutions, and any other items which may come before the board. Formal action will be taken. The agendas will be placed on the Authority website, nbcua.com, at least 48 hours prior to the meeting.

Northwest Bergen County
Utilities Authority

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

AGENDA REGULAR MEETING October 15, 2025

1. Meeting called to Order
2. Open Public Meetings Act Statement
3. Roll Call
4. Chairman's Remarks
5. Approval of Minutes
 - a. Regular Meeting – September 17, 2025
6. Public Comments (any subject)
7. Consideration for approval of list of Resolutions attached dated October 15, 2025
8. Report of Committees:
 - a. Finance Committee
 - b. Personnel Committee
 - c. Insurance Committee
 - d. Operating Committee
 - e. Strategic Plan Subcommittee
 - f. Buildings and Grounds Committee
9. Report of Treasurer
10. Report of General Counsel
11. Report of Consulting Engineer
12. Report of Executive Director
13. Report of Authority Engineer
14. Report of Superintendent
15. Old Business
16. New Business
17. Public Comments (on subjects 4 through 16)
18. Adjournment

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

REGULAR MEETING

October 15, 2025

RESOLUTIONS

- | | |
|---------|--|
| 74-2025 | Approval of Payment of Vouchers, Payroll, Tax Deposits and Pensions and Benefits |
| 75-2025 | 2026 Authority Budget |
| 76-2025 | Authorization to Approve the Sewer Connection for Premises Located at the New Street Water Treatment Facility, Veolia Water New Jersey, Inc. 98-101 New Street, Block 2101 Lot 4, Borough of Allendale, New Jersey |
| 77-2025 | Authorization to Amend an Agreement with Tighe & Bond to Provide Engineering Services |
| 78-2025 | Personnel Action |
| 79-2025 | Authorization to Amend the Not To Exceed for CP Engineering to Provide Engineering Services (Project 1176) |
| 80-2025 | Awarding a Contract to J. Fletcher Creamer and Son Inc. For Contract No. 344 Force Main and Air Valve Replacement |

MOTION

- | | |
|-------|---|
| 25-01 | NJLM Annual Conference and AEA Annual Conference Attendance |
|-------|---|

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 74-2025

Date: October 15, 2025

APPROVAL OF VOUCHERS, PAYROLL TRANSFERS, PAYROLL TAX DEPOSITS AND PENSIONS & BENEFITS TRANSFERS

WHEREAS, the Northwest Bergen County Utilities Authority has received vouchers in claim for payment of materials supplied and/or rendered; and

WHEREAS, the said vouchers have been reviewed and the amount indicated on each voucher has been determined to be due and owing; and

WHEREAS, the Northwest Bergen County Utilities Authority has made payroll transfers, payroll tax deposits and Pensions & Benefits transfers for the month of September 2025 and Health Benefits and Dental Benefits transfers for October 2025; and

WHEREAS, the Commissioners of the Authority have reviewed the vouchers, payroll transfers, payroll tax deposits, Pensions and Benefits, and Health and Dental Benefits transfers listed on the attached reports and have found them to be in order.

NOW, THEREFORE, BE IT RESOLVED, by the Commissioners of the Northwest Bergen County Utilities Authority, that all vouchers, payroll transfers, payroll tax deposits, Pensions & Benefits and Health and Dental Benefits transfers listed and reports attached hereto, dated October 15, 2025

ACCOUNT: Payroll Account
Net Payroll: \$192,057.98

ACCOUNT: Tax Deposit Account
Total: \$83,528.73

ACCOUNT: Health Benefits Contribution Employer
Total Transfer: \$155,745.22

ACCOUNT: Health Benefits Contribution Employee
Total: \$5,796.58

ACCOUNT: Dental Benefits
Total Transfer: \$3,707.66

ACCOUNT: PERS and Contributory Insurance
Total Transfer: \$30,681.70

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 74-2025

Date: October 15, 2025

**APPROVAL OF VOUCHERS, PAYROLL TRANSFERS, PAYROLL TAX DEPOSITS AND
PENSIONS & BENEFITS TRANSFERS**

ACCOUNT: Operating Account
Total: \$356,542.97

ACCOUNT: General Improvement Account
Total: \$26,077.25

ACCOUNT: Sewer Trust Account
Total: \$848,831.27

BE IT FURTHER RESOLVED that the formal action(s) of the Commissioners of the Northwest Bergen County Utilities Authority embodied herein are expressly contingent upon and subject to N.J.S.A. 40:14B-14(b).

FRANK KELAHER, CHAIRMAN

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 74-2025

Date: October 15, 2025

**APPROVAL OF VOUCHERS, PAYROLL TRANSFERS, PAYROLL TAX DEPOSITS AND
PENSIONS & BENEFITS TRANSFERS**

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaher	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

JOHN J. DANUBIO.
BOARD SECRETARY
DATE: October 15, 2025

Northwest Bergen County Utilities Authority

RESOLUTION

No. 75-2025

Date: October 15, 2025

2026 AUTHORITY BUDGET RESOLUTION **FISCAL YEAR: January 01, 2026 to December 31, 2026**

WHEREAS, the Annual Budget for Northwest Bergen County Utilities Authority for the fiscal year beginning January 01, 2026 and ending December 31, 2026 has been presented before the governing body of the Northwest Bergen County Utilities Authority at its open public meeting of October 15, 2025; and

WHEREAS, the Annual Budget as introduced reflects Total Revenues of \$17,633,238.00 Total Appropriations including any Accumulated Deficit, if any, of \$14,765,000, and Total Unrestricted Net Position planned to be utilized as funding thereof, of \$0.00; and

WHEREAS, the Capital Budget as introduced reflects Total Capital Appropriations of \$14,765,000.00 and Total Unrestricted Net Position planned to be utilized as funding thereof, of \$1,950,000.00; and

WHEREAS, the schedule of rents, fees and other charges in effect will produce sufficient revenues, together with all other anticipated revenues to satisfy all obligations to the holders of bonds of the Authority, to meet operating expenses, capital outlays, debt service requirements, and to provide for such reserves, all as may be required by law, regulation or terms of contracts and agreements; and

WHEREAS, the Capital Budget/Program, pursuant to N.J.A.C. 5:31-2, does not confer any authorization to raise or expend funds; rather it is a document to be used as part of the said Authority's planning and management objectives. Specific authorization to expend funds for the purposes described in this section of the budget must be granted elsewhere; by bond resolution, by a project financing agreement, by resolution appropriating funds from the Renewal and Replacement Reserve or other means provided by law.

NOW, THEREFORE BE IT RESOLVED, by the governing body of the Northwest Bergen County Utilities Authority, at an open public meeting held on October 15, 2025 that the Annual Budget, including all related schedules, and the Capital Budget/Program of the Northwest Bergen County Utilities Authority for the fiscal year beginning January 01, 2026 and ending December 31, 2026, is hereby approved; and

BE IT FURTHER RESOLVED, that the anticipated revenues as reflected in the Annual Budget are of sufficient amount to meet all proposed expenditures/expenses and all covenants, terms and provisions as stipulated in the said Authority's outstanding debt obligations, capital lease arrangements, service contracts, and other pledged agreements; and

BE IT FURTHER RESOLVED, that the governing body of the Northwest Bergen County Utilities Authority will consider the Annual Budget and Capital Budget/Program for Adoption on December 17, 2025; and

Northwest Bergen County Utilities Authority

RESOLUTION

No. 75-2025

Date: October 15, 2025

2026 AUTHORITY BUDGET RESOLUTION
FISCAL YEAR: January 01, 2026 to December 31, 2026

BE IT FURTHER RESOLVED, that the formal action(s) of the Commissioners of the Northwest Bergen County Utilities Authority embodied herein are expressly contingent upon and subject to N.J.S.A. 40:14B-14(b).

FRANK KELAHER, CHAIRMAN

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaher	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

JOHN J. DANUBIO
BOARD SECRETARY
DATE: October 15, 2025

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 76-2025

Date: October 15, 2025

**RESOLUTION AUTHORIZING
THE NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY
TO APPROVE THE SEWER CONNECTION FOR PREMISES
LOCATED AT THE NEW STREET WATER
TREATMENT FACILITY, VEOLIA WATER NEW JERSEY, INC.
98-101 NEW STREET, BLOCK 2101 LOT 4
BOROUGH OF ALLENDALE, NEW JERSEY**

WHEREAS, the Northwest Bergen County Utilities Authority (the “NBCUA”) has previously determined the need for and facilitated the upgrade of sanitary sewer lines within the Borough of Allendale (the “Borough”); and

WHEREAS, the NBCUA has previously resolved to construct sanitary sewer lines to assist in the collection and disposal of sanitary and other waste waters arising within the boundaries of the Borough of Allendale; and

WHEREAS, the NBCUA has received a Sewer Connection Application from Mr. Michael Mondello, PE on behalf of Veolia Water New Jersey, Inc. regarding 98-101 New Street, Allendale, New Jersey. They are desirous of collaborating with the Borough of Allendale for a connection to an existing Borough of Allendale sanitary sewer located at New Street. The proposed upgrade is designed to provide rinse wastewater when the new ion exchange media is installed. The proposed connection will involve constructing approximately 22 linear feet of 4-inch PVC sewer pipe and appurtenances to collect and dispose of sanitary and other wastewater arising within the boundaries of 98-101 New Street in the Borough of Allendale and to be received and serviced by the NBCUA. The application for this connection/extension projects an equivalent average daily flow of 350 gallons per day (GPD). This is less than the existing connection, therefore based on this projection, no additional, non-residential equivalent dwelling units (“EDU”) will become tributary to the Authority from the Borough of Allendale, (“Project”); and

WHEREAS, the NBCUA Technical Advisor, Samuel N. Brewer submitted a memorandum on September 22, 2025, to Robert Laux, Executive Director and to NBCUA’s General Counsel indicating that the Authority currently has sufficient capacity to accept the additional flow from this Project and recommended the approval of the Sewer Connection/Extension Application by the Authority;

NOW THEREFORE BE IT RESOLVED, that the NBCUA Chairman, Executive Director and the NBCUA’s General Counsel are authorized to prepare any and all documentation in order to facilitate the sewer connection to service 98-101 New Street within the Borough of Allendale and to report back to the NBCUA Commissioners on the status of same; and the

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 76-2025

Date: October 15, 2025

**RESOLUTION AUTHORIZING
THE NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY
TO APPROVE THE SEWER CONNECTION FOR PREMISES
LOCATED AT THE NEW STREET WATER
TREATMENT FACILITY, VEOLIA WATER NEW JERSEY, INC.
98-101 NEW STREET, BLOCK 2101 LOT 4
BOROUGH OF ALLENDALE, NEW JERSEY**

NBCUA shall be responsible for ensuring the intended construction of sanitary sewer lines shall comply with all laws of the State of New Jersey Local Public Contracts Law, N.J.S.A 40A:11-1 et. seq., and all other provisions of the revised statutes of the State of New Jersey.

NOW, THEREFORE, BE IT FURTHER RESOLVED, by the Commissioners of the Northwest Bergen County Utilities Authority as follows:

1. The Authority hereby authorizes the approval of the Sewer Connection Applications submitted by Mr. Michael Mondello, PE, on behalf of Veolia Water New Jersey, Inc. subject to the following Authority requirements:
2. Construction in conformance with all applicable requirements of the Borough of Allendale, where applicable.
3. Inspection and approval of the installation of sewers and appurtenances by the Borough of Allendale, where applicable.
4. Observation and approval by the Authority of infiltration/exfiltration testing, with the Authority to receive two (2) days advanced notice prior to the testing of all newly constructed sewers.
5. Reimbursement to the Authority by the applicant for all engineering expenses incurred by the Authority for inspection and final testing of the sewers and appurtenances.
6. Payment to the Authority by the applicant for all Authority application fees, legal fees, and other application, administrative, technical, and other review expenses relating to the project.
7. Any manhole constructed or modified by reason of this project must be fitted with sewer guards.

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 76-2025

Date: October 15, 2025

**RESOLUTION AUTHORIZING
THE NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY
TO APPROVE THE SEWER CONNECTION FOR PREMISES
LOCATED AT THE NEW STREET WATER
TREATMENT FACILITY, VEOLIA WATER NEW JERSEY, INC.
98-101 NEW STREET, BLOCK 2101 LOT 4
BOROUGH OF ALLENDALE, NEW JERSEY**

8. Water conserving plumbing fixtures shall be installed in the building serviced by this connection.
9. Notification of the Authority when sanitary sewer construction commences.
10. Submission to the Authority for its approval, NJDEP form WQM-005, "Certification for Approval by Local Agency," when the construction of this connection is completed.
11. The Chairman, or his designee, be and hereby is authorized to execute any such documents in connection the Sewer Connection Application.
12. The Northwest Bergen County Utilities Authority shall be responsible for ensuring that all the construction of sanitary sewer lines comply with all laws of the State of New Jersey Local Public Contracts Law, N.J.S.A 40A:11-1 et. seq., and all other provisions of the revised statutes of the State of New Jersey.

IT IS HEREBY CERTIFIED that this is a true copy of a Resolution adopted by the Northwest Bergen County Utilities Authority upon a roll call vote of all Commissioners of the Authority eligible to vote at a regular meeting held on September 18, 2025.

FRANK KELAHER, CHAIRMAN

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 76-2025

Date: October 15, 2025

**RESOLUTION AUTHORIZING
THE NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY
TO APPROVE THE SEWER CONNECTION FOR PREMISES
LOCATED AT THE NEW STREET WATER
TREATMENT FACILITY, VEOLIA WATER NEW JERSEY, INC.
98-101 NEW STREET, BLOCK 2101 LOT 4
BOROUGH OF ALLENDALE, NEW JERSEY**

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaheer	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

JOHN J. DANUBIO
BOARD SECRETARY
DATE: OCTOBER 15, 2025

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 77-2025

Date: October 15, 2025

RESOLUTION AMENDING AN AGREEMENT WITH TIGHE & BOND TO PROVIDE ENGINEERING SERVICES

WHEREAS, by Resolution No. 09-2025, the Northwest Bergen County Utilities Authority (the “Authority”) identified a number of firms as qualified to perform engineering services required by the Authority pursuant to a Request for Qualifications for such position, which notice thereof was published on December 16, 2024; and

WHEREAS, by Resolution No. 21-2025 (the “Original Resolution”) dated February 19, 2025, the Authority retained Tighe & Bond (the “Engineering Firm”) to provide engineering services related to the 2026 User Service Charges and the Authority and Engineering Firm entered into a professional services agreement (the “Agreement”); and

WHEREAS, the Original Resolution and Agreement provides for the Engineering Firm’s compensation to be capped at \$50,000 and in the event the Engineering Firm anticipates it will exceed that amount, to seek further authorization from the Authority at such time; and

WHEREAS, the Engineering Firm has submitted a proposal dated October 3, 2025 to the Authority for additional engineering services related to the calculation of the 2026 User Service Charges; and

WHEREAS, this additional work will cause the Engineering Firm to exceed the budget of \$50,000 for the calculation of the 2026 User Service Charges and has requested the Authority increase the not to exceed amount by \$6,000 for this additional work to \$56,000; and

WHEREAS, the Authority’s Certifying Finance Officer has certified that funds are available to increase the budget for the Engineering Firm.

NOW, THEREFORE, BE IT RESOLVED by the Commissioners of the Northwest Bergen County Utilities Authority the following:

1. The Original Resolution and the Professional Services Agreement with Tighe & Bond be amended to increase the not to exceed amount to \$56,000 due to the additional engineering services related to the calculation of the 2026 User Service Charges.
2. The Executive Director is hereby authorized to sign Amendment No. 1 as submitted by Tighe & Bond.
3. The Original Resolution and Agreement, unless expressly modified, shall remain in full force and effect.
4. The Certifying Finance Officer’s Certification of Available Funds shall be maintained on file at the Authority and made a part hereof.

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 77-2025

Date: October 15, 2025

**RESOLUTION AMENDING AN AGREEMENT WITH TIGHE & BOND TO PROVIDE
ENGINEERING SERVICES**

5. Notice of this amendment shall be published in accordance with applicable law.
6. The formal action(s) of the Commissioners of the Northwest Bergen County Utilities Authority embodied herein are expressly contingent upon and subject to the provisions of N.J.S.A. 40:14B-14(b)

FRANK KELAHER, CHAIRMAN

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaheer	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

JOHN J. DANUBIO
BOARD SECRETARY
DATE: October 15, 2025

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 78-2024

Date: October 15, 2025

APPROVAL OF PERSONNEL ACTION

WHEREAS, N.J.S.A. 40:14B-1 provides, *inter alia*, that the Authority may “appoint and employ, such other agents and employees as it may require and determine their duties and compensation”; and

WHEREAS, John J. Danubio was hired by the Authority June 24, 2019 as Assistant to the Executive Director; and

WHEREAS, Mr. Danubio has been assigned additional administrative responsibilities; and

WHEREAS, the Executive Director has recommended that Mr. Danubio receive a salary adjustment representing a 2.5% increase in current base salary in recognition of the increase of those responsibilities; and

NOW, THEREFORE, BE IT RESOLVED, the Commissioners of the Northwest Bergen County Utilities Authority hereby authorize John J. Danubio to receive a salary adjustment representing a 2.5% increase in current base salary in recognition of the increase of his administrative responsibilities effective retroactive to January 1, 2025.

BE IT FURTHER RESOLVED that the formal action(s) of the Commissioners of the Northwest Bergen County Utilities Authority embodied herein are expressly contingent upon and subject to N.J.S.A. 40:14B-14(b).

FRANK KELAHER, CHAIRMAN

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 78-2024

Date: October 15, 2025

APPROVAL OF PERSONNEL ACTION

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaheer	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

DOUGLAS M. BERN, ESQ.
ASSISTANT BOARD SECRETARY
DATE: OCTOBER 15, 2025

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 79-2025

DATE: October 15, 2025

**AUTHORIZATION TO AMEND THE NOT TO EXCEED FOR CP ENGINEERING TO
PROVIDE ENGINEERING SERVICES (Project 1176)**

WHEREAS the Northwest Bergen County Utilities Authority (the “Authority”) engaged CP engineer in to provide Engineering professional service for the replacement of aeration blowers (the Project) (project 1176); and

WHEREAS, the Board of Commissioners adopted Resolution 70-2024 approving a not to exceed \$86,300.00; and

WHEREAS, the Authority requires additional services due to a change in scope of the project; and

WHEREAS, CP engineering submitted a proposal on October 8, 2025 to increase the not to exceed cost by 66,500.00 to provide the required services; and

WHEREAS, the Authority’s Consulting Engineer, and the Authority’s Superintendent have reviewed the proposal and recommends that the Change Order be approved by the Authority; and

NOW, THEREFORE, BE IT RESOLVED by the Commissioners of the Northwest Bergen County Utilities Authority the following:

1. The proposal provided by CP Engineering is hereby approved with a not to exceed cost totaling one hundred fifty-two thousand eight hundred dollars (\$152,800).
2. Unless explicitly stated, the prior approval under Resolution 70-2024 remains in full force and effect.
3. The Executive Director and the Authority Engineer are hereby authorized to sign the approval.
4. A copy of this agreement shall be placed on file in the Office of the Executive Director. the formal action(s) of the Commissioners of the Northwest Bergen County Utilities Authority embodied herein are expressly contingent upon and subject to the provisions of N.J.S.A. 40:14B-14(b); and

FRANK KELAHER, CHAIRMAN

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 79-2025

DATE: October 15, 2025

**AUTHORIZATION TO AMEND THE NOT TO EXCEED FOR CP ENGINEERING TO
PROVIDE ENGINEERING SERVICES (Project 1176)**

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaheer	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

JOHN J. DANUBIO

BOARD SECRETARY

DATE: October 15, 2025

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

CERTIFICATION OF AVAILABILITY OF FUNDS

I hereby certify to the Board of Commissioners of the Northwest Bergen County Utilities Authority that sufficient funds are available for payment of the following:

CONTRACT: Project 1176

VENDOR: CP Engineering

AMOUNT: \$66,500.00

ACCOUNT NO.: 01-201-01-300-003

Date: October 15, 2025

Robert Laux, Certifying Finance Officer

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 80-2025

Date: October 15, 2025

RESOLUTION AWARDING A CONTRACT TO J. FLETCHER CREAMER & SONS INC. FOR CONTRACT NO. 344 FORCE MAIN AND AIR VALVE REPLACEMENT

WHERAS, the Northwest Bergen County Utilities Authority (“the Authority”), identified the need for repairs for certain force mains and valve replacements located at the Authority’s collection system; and

WHERAS, the Authority has prepared bid specifications and established Contract No. 344 (“the Contract”); and

WHERAS, the Contract was advertised on the EUNA e-procurement platform (Bergen Bids) on September 8, 2025, and bids were received on October 8, 2025; and

WHERAS, five bids were received as reflected in the chart below; and

<u>Bidder</u>	<u>Base Bid</u> <u>(2Year Term)</u>
J. Fletcher Creamer & Son Inc.	\$997,150.00
Conquest Construction Inc.	\$1,110,750.00
Colonnelli Brothers Inc.	\$1,182,550.00
Shauger Property Services, Inc.	\$1,299,125.00
Montana Construction Corp. Inc.	\$1,760,919.00

WHERAS, Colonnelli Brothers Inc. withdrew their previous bid for the same project, disqualifying them from the present bid under N.J.S.A. 40A:11- 23.3(4)f.; and

WHERAS, the Authority’s General Counsel recommends the Authority reject Colonnelli Brothers Inc.’s bid; and

WHERAS, J. Fletcher Creamer & Son Inc., a corporation with business offices located at 101 East Broadway, Hackensack, NJ 07601-6851 is the lowest responsible bidder; and

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 80-2025

Date: October 15, 2025

RESOLUTION AWARDING A CONTRACT TO J. FLETCHER CREAMER & SONS INC. FOR CONTRACT NO. 344 FORCE MAIN AND AIR VALVE REPLACEMENT

WHEREAS, the Authority's Qualified Purchasing Agent recommends the award, confirming that the bid of \$997,150.00 is fair and reasonable and in line with the expected costs; and

WHEREAS, funds have been certified as available for the purposes set forth in this resolution; and

NOW THEREFORE BE IT RESOLVED; that the Board of Commissioners hereby rejects Colonnelli Brothers Inc.'s bid for being a disqualified bidder for this project; and

BE IT FURTHER RESOLVED; that the Board of Commissioners hereby awards a contract to J. Fletcher Creamer & Son Inc. with offices located 101 East Broadway, Hackensack, NJ 07601-6851, in the amount not to exceed nine hundred ninety-seven thousand one hundred fifty dollars (\$997,150.00) as delineated in J. Fletcher Creamer & Son Inc.'s bid; and

BE IT FURTHER RESOLVED; that the Board of Commissioners directs Authority staff to take any and all action to effectuate the purpose of this resolution including but not limited to the preparation of and execution of a contract to be signed by either the Chairman, the Executive Director or designee; and

BE IT FURTHER RESOLVED that the formal action(s) of the Commissioners of the Northwest Bergen County Utilities Authority embodied herein are expressly contingent upon and subject to N.J.S.A. 40:14B-14(b).

FRANK KELAHER, CHAIRMAN

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

RESOLUTION

No. 80-2025

Date: October 15, 2025

**RESOLUTION AWARDING A CONTRACT TO J. FLETCHER CREAMER & SONS
INC. FOR CONTRACT NO. 344 FORCE MAIN AND AIR VALVE REPLACEMENT**

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelaheer	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								

I hereby certify that this is a true copy of a resolution adopted by the Board of Commissioners of the Northwest Bergen County Utilities Authority October 15, 2025.

JOHN J. DANUBIO
BOARD SECRETARY
DATE: OCTOBER 15, 2025

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

CERTIFICATION OF AVAILABILITY OF FUNDS

I hereby certify to the Board of Commissioners of the Northwest Bergen County Utilities Authority that sufficient funds are available for payment of the following:

CONTRACT: No. 344 Force Main and Air Valve Replacement

VENDOR: J. Fletcher Creamer & Son Inc.

AMOUNT: \$997,150.00

ACCOUNT NO.: 06-215-00-000-6620

Date: October 15, 2025

Robert Laux, Certifying Finance Officer

NORTHWEST BERGEN COUNTY UTILITIES AUTHORITY

MOTION

No. 25-01

Date: October 15, 2025

Motion to approve all present Commissioners, Executive Director, Assistant Executive Director and the Community & Government Relations Manager for attendance to the Association of Environmental Authorities' 2025 Annual Meeting Conference and the New Jersey State League of Municipalities Annual Conference in Atlantic City, New Jersey in November 2025.

RECORDED VOTE:

	Bonagura	Biale	Jordan	Lo Iacono	Tombalakian	Virk	Kelahe	
Offered								
Seconded								
Aye								
Nay								
Absent								
Abstain								
Recuse								



State of New Jersey

DEPARTMENT OF TRANSPORTATION

P.O. Box 600

Trenton, New Jersey 08625-0600

PHILIP D. MURPHY
Governor

TAHESHA L. WAY
Lt. Governor

FRANCIS K. O'CONNOR
Commissioner

2

October 07, 2025

Dear Mayor/County Commissioner/County Executive:

On behalf of Governor Phil Murphy, I am pleased to announce that applications will now be accepted for the New Jersey Department of Transportation's (NJDOT) Fiscal Year 2026 Local Freight Impact Fund. We are committed to maintaining and improving New Jersey's local transportation system by providing financial assistance to counties and municipalities throughout the state. The Local Freight Impact Fund provides aid to counties and municipalities for transportation projects that address the impacts of freight travel in local communities and on local transportation infrastructure. Available funding for the Fiscal Year 2026 program is \$28.0 million.

The Local Freight Impact Fund is a competitive grant program. Projects submitted for consideration must meet the following eligibility criteria:

- Projects must be within the jurisdiction of the applicant's municipality and/or county unless filed jointly with an adjacent municipality and/or county.
- Applicants must demonstrate that the project will provide access to a port, warehouse distribution center or any other freight node by providing a narrative and a map supporting their request.
- Projects must have a **minimum 10% large truck volume within the project limits**. A traffic study must be submitted to support this information.

Applicants of eligible projects can select from six project categories:

- **Roadway Preservation** - to improve pavement conditions in support of freight travel on municipal/county transportation infrastructure.
- **Truck Safety and Mobility** - to improve large truck access, routing and mobility along the municipal/county roadway system.
- **Bridge Preservation** - to improve bridge ratings/conditions in support of freight travel on municipal/county transportation infrastructure.
- **New Construction** - to promote new construction in support of freight travel on municipal/county transportation infrastructure.
- **Pedestrian Safety** - to improve pedestrian access to freight nodes, address pedestrian safety, and promote equity for those without the option to drive.

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- **Pavement Preservation** - to renew the road surface and correct irregularities while preserving and protecting the underlying pavement structure

The enclosed map provides contact information for each Local Aid District Office. I recommend that you consult with your Local Aid District Office to assist in preparing applications for funding. Please be advised that a separate application for each project must be completed and submitted on or **before December 17, 2025** online through the Department's electronic grants administration system, known by its acronym SAGE, at:

<https://njsage.intelligrants.com/Login2.aspx?APPTHEME=NJSAGE>

Training and instructions on how to apply through SAGE can also be found online at:
<http://www.state.nj.us/transportation/business/localaid/sage.shtm>.

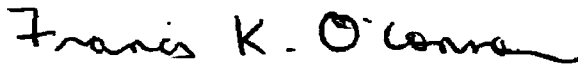
Additionally, an electronic resolution must be completed through the Local Aid Agreement Execution (LAAE) process in the Project Management and Reporting System (PMRS) within 30 days of application submission as required for all State Aid grant programs.

Please consider the following if you choose to apply: **NJDOT requires grant recipients to award their projects to construction within 36 months from the date of grant notification.**

Each program application will be evaluated independently, affording counties and municipalities the opportunity to receive funding in more than one category. A maximum of two applications are allowed for each Local Public Agency.

Thank you for your continued interest and support of NJDOT, and best wishes for success with your project applications.

Sincerely,



Francis K. O'Connor
Commissioner

Enclosure

New Jersey Department of Transportation Local Aid and Economic Development

Division Office

1035 Parkway Avenue, PO Box 600
Trenton, NJ 08625-0600
Phone: (609) 963-2021
Fax: (609) 530-8044
Manager: Kyle Skala

District 1

Roxbury Corporate Center
200 Stierli Court
Mount Arlington, NJ 07856
Phone: (973) 810-9120
Fax: (973) 601-6709
Manager: Adam Iervolino

District 2

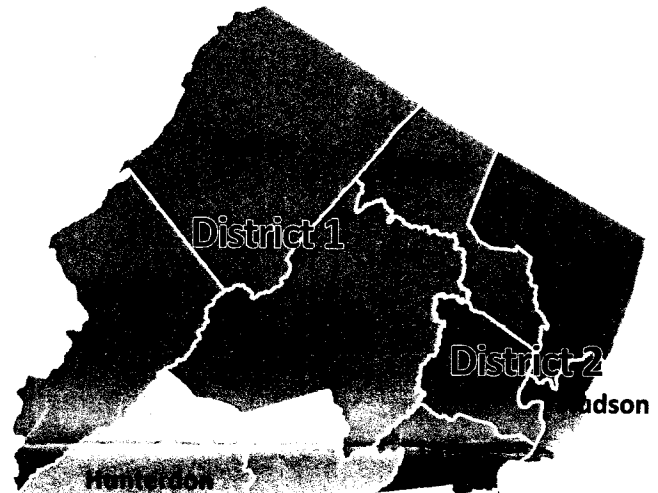
153 Halsey Street, 5th floor
Newark, NJ 07102
Phone: (862) 350-5730
Fax: (973) 648-4547
Manager: Ebony Johnson

District 3

1035 Parkway Avenue, PO Box 600
Trenton, NJ 08625-0600
Phone: (609) 963-2020
Fax: (609) 530-8044
Manager: Komila Pandit

District 4

One Executive Campus
Route 70 West, 3rd Floor
Cherry Hill, NJ 08002
Phone: (856) 414-8414
Fax: (856) 486-6771
Manager: Thomas Berryman



Somerset

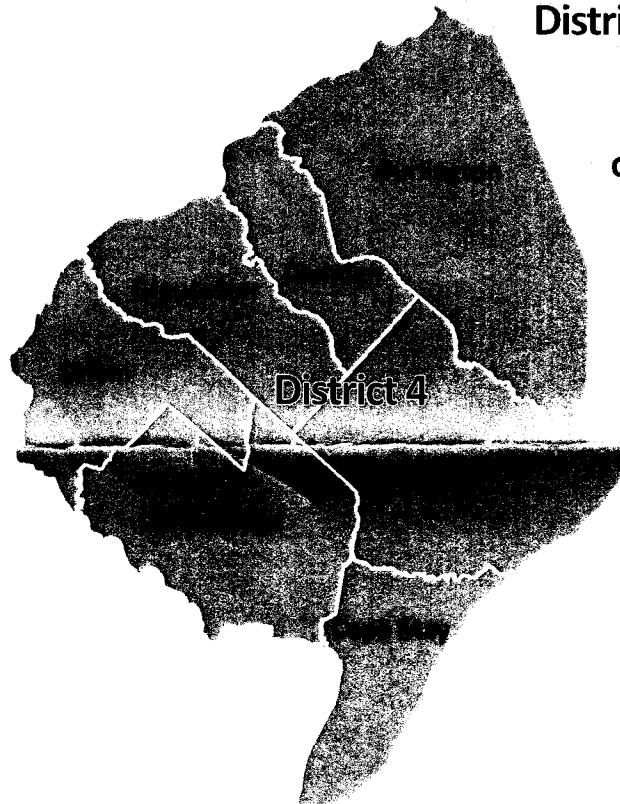
Middlesex

Mercer

Monmouth

District 3

Ocean



Local Aid and Economic Development

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. _____

Resolution by: _____

Seconded by: _____

FINAL ORD. NO. 23-2025

**AN ORDINANCE AMENDING CHAPTER 7 OF THE CODE OF THE BOROUGH
OF RAMSEY, BERGEN COUNTY, NEW JERSEY AND MORE PARTICULARLY
SECTION 7-32 THEREOF ENTITLED MID-BLOCK CROSSWALKS**

having been brought up for public hearing and all persons interested having been given an opportunity to be heard, pass final reading by title, and that said Ordinance be adopted as an Ordinance of the Borough of Ramsey; and

BE IT FURTHER RESOLVED that the Borough Clerk be, and she hereby is, directed to cause a copy of the title of said Ordinance to be published in an official newspaper of the Borough in the manner provided by law; together with a notice of the date of introduction and adoption of said ordinance.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

**BOROUGH OF RAMSEY
ORDINANCE NO. 23-2025**

**AN ORDINANCE AMENDING CHAPTER 7 OF THE CODE OF THE BOROUGH OF
RAMSEY, BERGEN COUNTY, NEW JERSEY AND MORE PARTICULARLY
SECTION 7-32 THEREOF ENTITLED MID-BLOCK CROSSWALKS**

BE IT ORDAINED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that Chapter 7 of the Code of the Borough and more specifically Section 7-32 thereof entitled Mid-Block Crosswalks be and hereby is amended and supplemented as follows:

SECTION 1. 7-32. MID-BLOCK CROSSWALKS.

Name of Street	Location
East Main Street	A distance of 425 feet west of the intersection of the westerly curblin of East Main Street and the southerly curblin of Arch Street.

SECTION 2. Repealer.

All Ordinances or parts of Ordinance inconsistent or in conflict with this Ordinance are hereby repealed as to said inconsistencies and conflicts.

SECTION 3. Severability.

If the provisions of any section, part of any section, or clause or phrase of this Ordinance is for any reason held to be invalid or unconstitutional, said decision shall not affect the remaining provisions of this Ordinance. The Governing Body of the Borough of Ramsey declares that it would have passed the Ordinance and each section and subsection thereof, irrespective of the fact that any one or more of the subsections, sentences, clauses or phrases may be declared unconstitutional or invalid

SECTION 4. Effective Date

This Ordinance shall take effect immediately upon passage and publication as required by law.

Introduced: October 8, 2025

Passed:

Meredith Bendian, Clerk

Deirdre Dillon, Mayor

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 182-2025

Resolution by: _____

Seconded by: _____

Page 1 of 2

WHEREAS, the Teamsters Local 469 represents all supervisory employees excluding borough clerks and public works managers and other contracted employees employed by the Borough of Ramsey; and

WHEREAS, the Union and Borough are parties to a Collectively Negotiated Agreement covering the timeframe January 1, 2022 through December 31, 2025 which contains negotiable terms and conditions of employment including healthcare; and

WHEREAS, the State Healthcare Benefits Program had an approximately 16.5% increase in calendar year 2025 with an additional premium increase of approximately 35.3% to be effective in calendar year 2026; and

WHEREAS, the Borough has been exploring various alternatives to lower the cost of healthcare premiums; and

WHEREAS, the Borough of Ramsey, Bergen County, New Jersey, has engaged with the Difference Card to undertake a plan to lower the cost of healthcare premiums to its employees while at the same time seeking to maintain substantially similar benefit coverage; and

WHEREAS, the Difference Card created a Health Reimbursement Account (HRA) debit card known as the Difference Card which has been approved by the New Jersey Department of Treasury, Division of Pension and Benefits State Health Benefits Program for a one (1) year period commencing January 2026; and

WHEREAS, the Borough has proposed offering this plan on a voluntary basis to Union members during the Open Enrollment period to be held in October 2025, with the plan commencing January 1, 2026 and continuing through the calendar year 2026 with subsequent plan renewals; and

WHEREAS, following numerous discussions and presentations by the Difference Card representatives the Union has agreed that the plan provisions may be offered to its members on a voluntary basis and wishes along with the Borough to signify its agreement by way of this written contract Addendum to the current labor contract.

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 182-2025

Resolution by: _____

Seconded by: _____

Page 2 of 2

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Mayor be and she hereby is authorized to enter into an Addendum to the Collectively Negotiated Agreement with Teamsters Local 469 as attached hereto and made a part hereof as Rider A.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 183-2025

Resolution by: _____

Seconded by: _____

Page 1 of 2

WHEREAS, the Teamsters Local 11 represents full-time and permanent blue-collar employees of the Board of Public Works holding the titles of water/equipment operator or water operator/laborer or water meter reader/laborer or master water operator employed by the Borough of Ramsey; and

WHEREAS, the Union and Borough are parties to a Collectively Negotiated Agreement covering the timeframe January 1, 2022 through December 31, 2025 which contains negotiable terms and conditions of employment including healthcare; and

WHEREAS, the State Healthcare Benefits Program had an approximately 16.5% increase in calendar year 2025 with an additional premium increase of approximately 35.3% to be effective in calendar year 2026; and

WHEREAS, the Borough has been exploring various alternatives to lower the cost of healthcare premiums; and

WHEREAS, the Borough of Ramsey, Bergen County, New Jersey, has engaged with the Difference Card to undertake a plan to lower the cost of healthcare premiums to its employees while at the same time seeking to maintain substantially similar benefit coverage; and

WHEREAS, the Difference Card created a Health Reimbursement Account (HRA) debit card known as the Difference Card which has been approved by the New Jersey Department of Treasury, Division of Pension and Benefits State Health Benefits Program for a one (1) year period commencing January 2026; and

WHEREAS, the Borough has proposed offering this plan on a voluntary basis to Union members during the Open Enrollment period to be held in October 2025, with the plan commencing January 1, 2026 and continuing through the calendar year 2026 with subsequent plan renewals; and

WHEREAS, following numerous discussions and presentations by the Difference Card representatives the Union has agreed that the plan provisions may be offered to its members on a voluntary basis and wishes along with the Borough to signify its agreement by way of this written contract Addendum to the current labor contract.

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 183-2025

Resolution by: _____

Seconded by: _____

Page 2 of 2

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Mayor be and she hereby is authorized to enter into an Addendum to the Collectively Negotiated Agreement with Teamsters Local 11 as attached hereto and made a part hereof as Rider A.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 184-2025

Resolution by: _____

Seconded by: _____

Page 1 of 2

WHEREAS, the Teamsters Local 125 represents full-time and permanent employees of the road department holding the titles mechanic, equipment operator and laborer employed by the Borough of Ramsey; and

WHEREAS, the Union and Borough are parties to a Collectively Negotiated Agreement covering the timeframe January 1, 2022 through December 31, 2025 which contains negotiable terms and conditions of employment including healthcare; and

WHEREAS, the State Healthcare Benefits Program had an approximately 7.5% increase in calendar year 2024 with an additional premium increase of approximately 16.5% to be effective in calendar year 2025; and

WHEREAS, the Borough has been exploring various alternatives to lower the cost of healthcare premiums; and

WHEREAS, the Borough of Ramsey, Bergen County, New Jersey, has engaged with the Difference Card to undertake a plan to lower the cost of healthcare premiums to its employees while at the same time seeking to maintain substantially similar benefit coverage; and

WHEREAS, the Difference Card created a Health Reimbursement Account (HRA) debit card known as the Difference Card which has been approved by the New Jersey Department of Treasury, Division of Pension and Benefits State Health Benefits Program for a one (1) year period commencing January 2025; and

WHEREAS, the Borough has proposed offering this plan on a voluntary basis to Union members during the Open Enrollment period to be held in October 2024, with the plan commencing January 1, 2025 and continuing through the calendar year 2025 with subsequent plan renewals; and

WHEREAS, following numerous discussions and presentations by the Difference Card representatives the Union has agreed that the plan provisions may be offered to its members on a voluntary basis and wishes along with the Borough to signify its agreement by way of this written contract Addendum to the current labor contract.

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 184-2025

Resolution by: _____

Seconded by: _____

Page 2 of 2

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Mayor be and she hereby is authorized to enter into an Addendum to the Collectively Negotiated Agreement with Teamsters Local 125 as attached hereto and made a part hereof as Rider A.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 185-2025

Resolution by: _____

Seconded by: _____

Page 1 of 2

WHEREAS, the Policemen's Benevolent Association Local 155 represents permanently appointed patrol officers, sergeants and lieutenants employed by the Borough of Ramsey; and

WHEREAS, the Union and Borough are parties to a Collectively Negotiated Agreement covering the timeframe January 1, 2022 through December 31, 2026 which contains negotiable terms and conditions of employment including healthcare; and

WHEREAS, the State Healthcare Benefits Program had an approximately 16.5% increase in calendar year 2025 with an additional premium increase of approximately 35.3% to be effective in calendar year 2026; and

WHEREAS, the Borough has been exploring various alternatives to lower the cost of healthcare premiums; and

WHEREAS, the Borough of Ramsey, Bergen County, New Jersey, has engaged with the Difference Card to undertake a plan to lower the cost of healthcare premiums to its employees while at the same time seeking to maintain substantially similar benefit coverage; and

WHEREAS, the Difference Card created a Health Reimbursement Account (HRA) debit card known as the Difference Card which has been approved by the New Jersey Department of Treasury, Division of Pension and Benefits State Health Benefits Program for a one (1) year period commencing January 2026; and

WHEREAS, the Borough has proposed offering this plan on a voluntary basis to Union members during the Open Enrollment period to be held in October 2025, with the plan commencing January 1, 2026 and continuing through the calendar year 2026 with subsequent plan renewals; and

WHEREAS, following numerous discussions and presentations by the Difference Card representatives of the Union have agreed that the plan provisions may be offered to its members on a voluntary basis and wishes along with the Borough to signify its agreement by way of this written contract Addendum to the current labor contract.

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 185-2025

Resolution by: _____

Seconded by: _____

Page 2 of 2

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Mayor be and she hereby is authorized to enter into an Addendum to the Collectively Negotiated Agreement with the Policemen's Benevolent Association Local 155 as attached hereto and made a part hereof as Rider A.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 186-2025

Resolution by: _____

Seconded by: _____

Page 1 of 2

WHEREAS, the United Public Service Employees Union (Borough White Collar) represents borough white-collar employees; and

WHEREAS, the Union and Borough are parties to a Collectively Negotiated Agreement covering the timeframe January 1, 2022 through December 31, 2025 which contains negotiable terms and conditions of employment including healthcare; and

WHEREAS, the State Healthcare Benefits Program had an approximately 16.5% increase in calendar year 2025 with an additional premium increase of approximately 35.3% to be effective in calendar year 2026; and

WHEREAS, the Borough has been exploring various alternatives to lower the cost of healthcare premiums; and

WHEREAS, the Borough of Ramsey, Bergen County, New Jersey, has engaged with the Difference Card to undertake a plan to lower the cost of healthcare premiums to its employees while at the same time seeking to maintain substantially similar benefit coverage; and

WHEREAS, the Difference Card created a Health Reimbursement Account (HRA) debit card known as the Difference Card which has been approved by the New Jersey Department of Treasury, Division of Pension and Benefits State Health Benefits Program for a one (1) year period commencing January 2026; and

WHEREAS, the Borough has proposed offering this plan on a voluntary basis to Union members during the Open Enrollment period to be held in October 2025, with the plan commencing January 1, 2026 and continuing through the calendar year 2026 with subsequent plan renewals; and

WHEREAS, following numerous discussions and presentations by the Difference Card representatives the Union has agreed that the plan provisions may be offered to its members on a voluntary basis and wishes along with the Borough to signify its agreement by way of this written contract Addendum to the current labor contract.

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 186-2025

Resolution by: _____

Seconded by: _____

Page 2 of 2

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Mayor be and she hereby is authorized to enter into an Addendum to the Collectively Negotiated Agreement with the Public Service Employees Union (Borough White Collar) as attached hereto and made a part hereof as Rider A.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 187-2025

Resolution by: _____

Seconded by: _____

Page 1 of 2

WHEREAS, the United Public Service Employees Union (Library) represents full and part-time library employees; and

WHEREAS, the Union and Borough are parties to a Collectively Negotiated Agreement covering the timeframe January 1, 2022 through December 31, 2025 which contains negotiable terms and conditions of employment including healthcare; and

WHEREAS, the State Healthcare Benefits Program had an approximately 16.5% increase in calendar year 2025 with an additional premium increase of approximately 35.3% to be effective in calendar year 2026; and

WHEREAS, the Borough has been exploring various alternatives to lower the cost of healthcare premiums; and

WHEREAS, the Borough of Ramsey, Bergen County, New Jersey, has engaged with the Difference Card to undertake a plan to lower the cost of healthcare premiums to its employees while at the same time seeking to maintain substantially similar benefit coverage; and

WHEREAS, the Difference Card created a Health Reimbursement Account (HRA) debit card known as the Difference Card which has been approved by the New Jersey Department of Treasury, Division of Pension and Benefits State Health Benefits Program for a one (1) year period commencing January 2026; and

WHEREAS, the Borough has proposed offering this plan on a voluntary basis to Union members during the Open Enrollment period to be held in October 2025, with the plan commencing January 1, 2025 and continuing through the calendar year 2026 with subsequent plan renewals; and

WHEREAS, following numerous discussions and presentations by the Difference Card representatives the Union has agreed that the plan provisions may be offered to its members on a voluntary basis and wishes along with the Borough to signify its agreement by way of this written contract Addendum to the current labor contract.

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 187-2025

Resolution by: _____

Seconded by: _____

Page 2 of 2

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Mayor be and she hereby is authorized to enter into an Addendum to the Collectively Negotiated Agreement with the Public Service Employees Union (Library) as attached hereto and made a part hereof as Rider A.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 188-2025

Resolution by: _____

Seconded by: _____

WHEREAS, the Borough of Ramsey (hereinafter the “Borough” as appropriate) is a municipality of the County of Bergen and is subject to certain requirements of the Local Public Contracts Law; and

WHEREAS, the Borough resolve to award a professional service agreement in accordance with a fair an open process pursuant to N.J.S.A. 19:44A-20.4 et. seq.

NOW THEREFORE BE IT RESOLVED THAT:

1. The EB Employee Solutions, LLC, dba as The Difference Card (hereinafter the VENDOR) with a business address of 200 Business Park Drive, Suite 311, Armonk, NY 10504 is appointed to provide HRA Services for the period January 1, 2026 through December 31, 2026.

BE IT FURTHER RESOLVED THAT: All associated fees due to the VENDOR will be paid by the Borough directly to VENDOR.

BE IT FURTHER RESOLVED THAT: the Borough of Ramsey is hereby authorized to execute contracts between the Borough and the VENDOR set forth in this resolution with terms and conditions as required by the Borough.

BE IT FURTHER RESOLVED THAT: the Vendor shall execute said contract prepared by the Borough and supply any surety bond along with errors and omissions coverage if required by law or deemed necessary in the sole discretion of the Commission.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. 192-2025

Resolution by: _____

Seconded by: _____

WHEREAS, the Governing Body of the Borough of Ramsey, Bergen County, New Jersey has determined that the following items are no longer needed for public use; and

WHEREAS, N.J.S.A. 40A:12-13 permits for the sale by a municipality of personal property no longer needed for public use.

WHEREAS, the appropriate recommending authority has deemed the following vehicles are no longer needed for public use and should be auctioned:

<u>Year & Make</u>	<u>VIN #</u>	<u>Borough Asset Tag #</u>
2006 GMC 2500 HD	1GTHK29D26E265500	141
2005 GMC 3500	1GDJK34235E284385	8
2008 GMC 2500HD	1GTHK29688E181492	5
2009 GMC 3500	1GTHK74629F176014	47
2006 GMC W4500	J8DC4B16167014097	83
2007 GMC C8500	1GDS8C1C77F400331	12
2002 CHEVY C8500	1GBS7H1C22J506121	67
2004 GMC C8500	1GDS8C1C64F505650	64
1995 FORD L-9000	1FDZU90U8SVA79776	56
2006 VOLVO L-9000	4V5KC9GFX6N412453	75
2014 DODGE Ram 1500	1CGRR7XT3ES453683	
2013 FORD Explorer	1FM5K8AR7DGC11166	1997
2005 FORD Crown Vic	2FAFP71W25X120396	1330
2009 CHEVY Tahoe	1GNFK03089R169165	1601
1983 MACK CF-686FAP	1M2A140C8DM001555	
2004 FORD Crown Vic	2FAFP71W54X179599	A076
2006 GMC 2500HD	1GTHK29D26E265500	141
2007 FORD Crown Vic	2FAFP71W77X113155	
2014 FORD Explorer	1FM5K8AR0EGB91229	
2001 FORD Crown Vic	2FAFP71W91X138310	
2007 CHEVY Suburban	3GNGK26KX7G276504	1465

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that the Borough be and hereby is authorized to enter into an agreement with govdeals.com for the sale by auction of items of personal property pursuant to N.J.S.A. 40A:12-13.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

COUNCIL OF THE BOROUGH OF RAMSEY

RESOLUTION NO. _____

Resolution by: _____

Seconded by: _____

INTRO ORDINANCE 24-2025

BE IT RESOLVED that an Ordinance entitled:

AN ORDINANCE AMENDING CHAPTER 7 OF THE CODE OF THE BOROUGH OF RAMSEY, BERGEN COUNTY, NEW JERSEY SO AS TO ESTABLISH SECTION 7-45 ENTITLED SKATEBOARDS, SCOOTERS, MOTORIZED VEHICLES OR DEVICES

Pass the first reading by title, and that said Ordinance be further considered for final passage and adoption at a regular meeting of the Mayor and Council to be held on the 12th day of November, 2025, 7:00p.m. prevailing time or as soon after as the matter can be reached, at the Municipal Building in said Borough, and

BE IT FURTHER RESOLVED that the Borough Clerk be, and she hereby is, instructed to publish in an official newspaper of the Borough in the manner provided by law a copy of said Ordinance, together with Notice of Introduction thereof and notice when the same will be considered for final passage and adoption.

	YES	NO	A B S T A I N	A B S E N T
DILLON, D. MAYOR				
CUSICK, J.				
GUTWETTER, M.				
KILMAN, P.				
POPOLO, G.				
POPPE, S.				
WOODS, J.				

I CERTIFY THAT THIS IS A TRUE COPY OF A RESOLUTION
PASSED AND APPROVED AT THE REGULAR COUNCIL
MEETING OF THE MAYOR AND COUNCIL

MEREDITH BENDIAN, MUNICIPAL CLERK

OCTOBER 22, 2025

PASSED AND APPROVED

CLERK

MAYOR

**BOROUGH OF RAMSEY
ORDINANCE NO. 24-2025**

**AN ORDINANCE AMENDING CHAPTER 7 OF THE CODE OF THE BOROUGH OF
RAMSEY, BERGEN COUNTY, NEW JERSEY SO AS TO ESTABLISH SECTION 7-45
ENTITLED SKATEBOARDS, SCOOTERS, MOTORIZED VEHICLES OR DEVICES**

BE IT ORDAINED by the Governing Body of the Borough of Ramsey, Bergen County, New Jersey that Chapter 7 of the Code of the Borough of Ramsey be and hereby is amended and supplemented so as to establish Section 7-45 entitled Skateboards, Scooters, Motorized Vehicles or Devices as follows:

WHEREAS, the Borough of Ramsey has encountered a substantial increase in the number of persons operating electric bicycles, electric scooters and other similar motor -powered devices on public streets, sidewalks, paths, bicycle paths, parks and other public and private property throughout the municipality; and

WHEREAS, the use of electric bicycles, electric scooters and other powered devices without due care and adherence to traffic laws and on sidewalks and areas where pedestrians are present and unsuitable for use poses a risk to riders, pedestrians as well as to the motoring public: and

WHEREAS, the Borough finds and declares that the establishment and enforcement of regulations for the use and operation of electric bicycles, electric scooters and other powered devices within the Borough will improve the overall safety of roadways, sidewalks and other public facilities and will otherwise promote and protect the general safety and wellbeing of operators, pedestrians, motorists as well as visitors and residents:

BE IT ORDAINED by the Governing Body of Ramsey, Bergen County, New Jersey that Chapter 7 of the Code of the Borough be and hereby is amended and supplemented so as to establish Section 7-45 entitled Skateboards, Scooters, Motorized Vehicles or Devices as follows:

**SECTION 1. 7-45 SKATEBOARDS, SCOOTERS, MICROMOBILITY VEHICLES OR
DEVICES.**

7-45.1 Intent and Purpose.

The purpose and intent of this Article is to establish regulations and guidelines for the operation of low-speed electric bicycles and low-speed electric scooters within the Borough of Ramsey. It is not primarily intended to penalize individuals who operate electric bicycles or scooters in violation of the provisions contained herein, but rather to educate both children and adults regarding proper and safe riding practices, to ensure safety and welfare of the riders, motorists and pedestrians, and to make riding an enjoyable experience.

7-45.2 Applicability of this Article.

The provisions of this Article shall apply to all roadways under the jurisdiction of the Borough of Ramsey and subject to regulation by the Mayor and Council of the Borough of Ramsey, and all paths, bicycle paths, facilities, parks, property and public sidewalks within the Borough owned, or under the control or supervision of the Borough of Ramsey.

This Article shall not apply to, nor shall it be construed to regulate, directly or indirectly, in any manner, the use or operation of any powered or motorized wheelchair, medical device, mobility scooter or similar mobility assisting devices designed for use by persons with disabilities, medical conditions or by persons whose ambulatory mobility has been impaired by age or illness or condition/injury.

Nothing in this Article shall be construed to apply, regulate or prohibit activity that is exempt from, or not subject to, Borough regulation pursuant to State law. If any provision of this Article is inconsistent with the statutes and/or regulations of the State of New Jersey, the State statutes and/or regulations shall prevail. Nothing in this Article is intended, nor shall be construed, to supersede any applicable State laws.

7-45.3 Definitions.

As used in this Article, the following words, terms and their derivations shall have the following meanings unless their use in the text of this Article clearly demonstrates a different meaning:

BOROUGH FACILITY, PARK OR PROPERTY shall mean and include all buildings, facilities, structures, parks, recreation facilities, playgrounds, athletic fields, beaches, parking lots, gardens, paths, bicycle paths and other lands and real property owned or under the control or supervision of the Borough of Ramsey upon which the public is invited or upon which the public is permitted, including but not limited to any parking area, driveway or drive aisle.

LOW-SPEED ELECTRIC BICYCLE shall mean and include a two or three-wheeled vehicle with fully operable pedals and an electric motor of less than 750 watts, that meets the requirements of one of the following classifications: "class 1 low-speed electric bicycle" - which means a low-speed electric bicycle equipped with a motor that provides assistance only when the rider is pedaling, and that ceases to provide assistance when the bicycle reaches the speed of 20 miles per hour; or "class 2 low-speed electric bicycle" - which means a low-speed electric bicycle equipped with a motor that may be used exclusively to propel the bicycle, and that is not capable of providing assistance when the bicycle reaches the speed of 20 miles per hour. This term shall not include: electric personal assistive mobility devices, motorized wheelchairs, mobility scooters or similar mobility assisting devices used by persons with physical disabilities, or persons whose ambulatory mobility has been impaired by age or illness or condition/injury.

LOW-SPEED ELECTRIC SCOOTER shall mean and include a scooter with a floorboard that can be stood upon by the operator, with handlebars, and an electric motor that is capable of propelling the device with or without human propulsion at a maximum speed of less than 19 miles per hour. This term shall not include: electric personal assistive mobility devices, motorized wheelchairs, mobility scooters or similar mobility assisting devices used by persons with physical disabilities, or persons whose ambulatory mobility has been impaired by age or illness or condition/injury.

MOTORIZED BICYCLE means and includes a pedal bicycle having a helper motor characterized in that either the maximum piston displacement is less than 50 cc. or said motor is rated at no more than 1.5 brake horsepower or is powered by an electric drive motor and said bicycle is capable of a maximum speed of no more than 25 miles per hour on a flat surface or a pedal bicycle having an electric motor that is capable of propelling the bicycle in excess of 20 miles per hour with a maximum motor-powered speed of no more than 28 miles per hour on a

flat surface. This term shall not include a low-speed electric bicycle or low-speed electric scooter as defined in this Article.

MOTORIZED SCOOTER means and includes a miniature motor vehicle and includes, but is not limited to, pocket bikes, super pocket bikes, scooters, mini-scooters, sport scooters, mini choppers, mini motorcycles, motorized skateboards and other vehicles with motors not manufactured in compliance with Federal Motor Vehicle Safety Standards and which have no permanent Federal Safety Certification stickers affixed to the vehicle by the original manufacturer. This term shall not include: electric personal assistive mobility devices, motorized bicycles, low-speed vehicles, low-speed electric bicycles, or low-speed electric scooters; or motorized wheelchairs, mobility scooters or similar mobility assisting devices used by persons with physical disabilities, or persons whose ambulatory mobility has been impaired by age or illness or condition/injury.

PEDESTRIAN means and includes a person who is afoot and who is not operating, seated on, riding, occupying, entering into or alighting from a low-speed electric bicycle, low-speed electric scooter, vehicle or other motor propelled device.

SIDEWALK means and includes any sidewalk owned, controlled or maintained by the Borough. The term shall not include sidewalks or walkways on private property in shopping centers, apartment complexes, office building sites or any other private property.

7-45.4 Application of traffic laws to low-speed electric bicycles and low-speed electric scooters.

Every person operating a low-speed electric bicycle or low-speed electric scooter upon any roadway shall, independent of this Article, be granted all the rights and shall be subject to all the duties applicable to the driver of a vehicle pursuant Chapter Four of Title 39 of the New Jersey Revised Statutes and of the Borough Code, except as to those provisions thereof which by their nature can have no application to such persons.

7-45.5 Operation of low-speed electric bicycles and low-speed electric scooters.

a. Obedience to traffic control devices.

1. Any person operating a low-speed electric bicycle or low-speed electric scooter on any Borough roadway shall observe and obey all traffic control signals, signs and other control devices in the same manner and to the same extent as required of the operator of a motor vehicle, except and unless otherwise directed by a police officer or exempted pursuant to the provisions of this Article or official signage.
2. Whenever authorized signs are posted indicating that a turning movement is restricted, no person operating a low-speed electric bicycle or low-speed electric scooter shall disobey the direction of any such sign, except where the operator dismounts from the low-speed electric bicycle or low-speed electric scooter to make the turn, in which event such person shall then obey the regulations applicable to pedestrians.

3. No person shall ride or operate a low-speed electric bicycle or low-speed electric scooter in any direction on any Borough roadway, except that permitted of vehicular traffic traveling on the same side of the roadway.
 4. A person operating a low-speed electric bicycle or low-speed electric scooter on a Borough roadway is not required to register the low-speed electric bicycle or low-speed electric scooter, furnish proof of insurance, or have a driver's license.
- b. Riding on Borough roadways and bicycle paths generally.
1. Any person operating a low-speed electric bicycle or low-speed electric scooter upon a Borough roadway shall ride as near to the right-hand side of the traveled roadway as practicable under the circumstances, exercising due care when passing a standing vehicle or one proceeding in the same direction.
 2. No person shall ride or sit as a passenger on a low-speed electric bicycle or low-speed electric scooter while the device is in motion on any Borough roadway unless there is proper seating for both rider and passenger and each such persons under 17 years of age is wearing a properly fitted and fastened protective helmet.
 3. Any person operating a low-speed electric bicycle or low-speed electric scooter on a Borough roadway shall stop for pedestrians in crosswalks.
 4. No person operating, riding on or using a low-speed electric bicycle or low-speed electric scooter, or other similar powered device, shall connect or attach themselves, any passenger or the low-speed electric bicycle or low-speed electric scooter on which they are riding to any vehicle upon a Borough roadway.
 5. No person operating or riding on any low-speed electric bicycle or low-speed electric scooter shall tow or pull any object of any kind while such device is in motion on any Borough roadway.
 6. No person shall use a wireless telephone or other electronic communication device while operating a low-speed electric bicycle or low-speed electric scooter on any Borough roadway, except when the telephone is a hands-free wireless telephone or the electronic communication device is used hands-free, provided that its placement does not interfere with the operation and the operator exercises a high degree of caution.
 7. Every person operating a low-speed electric bicycle or low-speed electric scooter on a bike path that is about to enter or cross a roadway shall yield the right-of-way to all traffic on such roadway.
 8. No person operating a low-speed electric bicycle or low-speed electric scooter on a Borough roadway shall carry any package, bundle, or article which prevents the operator from keeping both hands upon the handlebars.
 9. Any group of two or more persons operating any low-speed electric bicycle or low-speed electric scooter shall travel in single file, except and unless the volume

of vehicles and traffic conditions are such that side by side travel is safe under the circumstances.

10. Whenever a bicycle lane has been established on a Borough roadway, any person operating a low-speed electric bicycle or low-speed electric scooter shall ride within the bicycle lane.
- c. No person under 17 years of age shall operate, or ride upon a low-speed electric bicycle or low-speed electric scooter as a driver or passenger on any Borough roadway, unless that person is wearing a properly fitted and fastened protective helmet.
 - d. Operation on Sidewalks.
 1. No person shall use or operate any low-speed electric bicycle, low-speed electric scooter, motorized bicycle, motorized scooter, motor vehicle or any other motor powered or equipped device on any sidewalk within the Borough, except that this prohibition is not intended to regulate or prohibit pedestrian activity, nor the use or riding of bicycles and other non -motor equipped wheeled devices that are powered to motion exclusively by human muscle, on the sidewalk.
 2. Bicycles and other non -motor equipped wheeled devices that are powered to motion exclusively by human muscle shall be permitted on sidewalks within the Borough.
 3. Any person operating a low-speed electric bicycle, low-speed electric scooter, motorized bicycle or motorized scooter upon dismounting from such low-speed electric bicycle, low-speed electric scooter, motorized bicycle or motorized scooter, may stand, walk and travel freely on and about the sidewalk with, and while walking or pushing, a low-speed electric bicycle, low-speed electric scooter, motorized bicycle or motorized scooter.
 4. The operator of a low-speed electric bicycle or low-speed electric scooter emerging from an alleyway, driveway, or building shall, upon approaching a sidewalk area extending across any alleyway or driveway, yield the right-of-way to all pedestrians or bicyclists approaching on the sidewalk or sidewalk area. Upon entering the Borough roadway, the user shall yield the right-of-way to all vehicles approaching on the roadway.
 5. For the purpose of this Ordinance only no person shall operate or ride any electric or motorized skateboard or scooter, electric personal assistive mobility device, low-speed electric bicycle, low-speed electric scooter, micromobility vehicle or device, motorized bicycle, scooter and/or skateboard on or in Main Street or abutting sidewalk between Franklin Turnpike and North Central Avenue in the Borough of Ramsey.
 - e. Operation on and within Borough Facilities, Fields and Property.
 1. The operation and use of low-speed electric bicycles, low-speed electric scooters, motorized bicycles or motorized scooters on, within or upon any Borough Facility, Park and Property, including all buildings, facilities, structures, parks,

recreation facilities, playgrounds, athletic fields, beaches, parking lots, gardens, paths, bicycle paths and other lands and real property owned or controlled by the Borough as well as any driveway, parking lot or other paved surface therein, regardless of the surface of such area, is prohibited, except in such areas where explicitly permitted by way of an official Borough sign posted at such location.

f. Parking, generally.

1. Low-speed electric bicycles and low-speed electric scooters are permitted to be secured on any bicycle rack located at Borough Facilities.
2. When available, low-speed electric bicycles and low-speed electric scooters shall be parked in designated, marked, parking areas when on any Borough property or facility.
3. Low-speed electric bicycles and low-speed electric scooters may be attached or secured to the bicycle rack with a U-lock, chain lock, or any type of lock made specifically for bicycles and/or low-speed electric bicycles and low-speed electric scooters. No person shall attach or secure a low-speed electric bicycle or low-speed electric scooter to any fixed object not suited for electric scooter or electric bicycle parking.
4. No person shall leave low-speed electric bicycle or low-speed electric scooter lying on or standing upon a sidewalk in such a manner as to block or impede pedestrians. A person may temporarily leave a low-speed electric bicycle or low-speed electric scooter parked on the sidewalk, provided that it does not block or impede the safe and orderly movement of pedestrians upon the sidewalk and provided further that the low-speed electric bicycle or low-speed electric scooter shall be parked to side of the paved surface area.
5. No person shall leave or park a low-speed electric bicycle or low-speed electric scooter on or at any Borough Property or business or private property within the Borough where prohibited by the owner.
6. No person shall leave or park a low-speed electric bicycle or low-speed electric scooter in such a manner as to block or impede access, entry or pedestrian travel to or from any Borough facility, park or property.
7. No person shall park a low-speed electric bicycle or low-speed electric scooter upon a street other than upon the roadway against the curb or in a designated bicycle, electric scooter, or electric bicycle parking area in a rack to support the electric scooter or electric bicycle, or against a building or at the curb.

g. Lamps and equipment.

A low-speed electric bicycle or low-speed electric scooter operated during non-daylight hours shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front with a lamp emitting a red light visible from a distance of 500 feet to the rear.

- h. No person shall operate a low-speed electric bicycle or low-speed electric scooter on any business or private property within the Borough where a sign is posted by the property or business owner prohibiting such use or operation.
- i. Prohibited Modifications.

Pursuant to Title 39 of the New Jersey Revised Statutes, no person shall tamper with or modify any low-speed electric bicycle or low-speed electric scooter so as to change the motor -powered speed capability or otherwise exceed the maximum speed allowable by law for such device. Notwithstanding any other penalties authorized by law or this Article, any low-speed electric bicycle or low-speed electric scooter found to have been unlawfully tampered with or modified shall be subject to impoundment in accordance with §7-45.8.

7-45.6 Abandonment of low-speed electric bicycles and scooters.

- a. A low-speed electric bicycle or low-speed electric scooter may be deemed abandoned by the Borough if:
 - 1. It has been parked for a period of three (3) or more consecutive calendar days in the same location; or
 - 2. It appears visually to be in a state of prolonged disuse such that it has deflated tires, damaged or missing equipment making it inoperable, accumulated leaves and debris associated with it; or
 - 3. Seventy -Five Percent (75%) or more of the low-speed electric bicycle or low-speed electric scooter is rusted; or
 - 4. It is found in any other condition in which an electric scooter would be deemed abandoned.
- b. The abandonment by any person of any low-speed electric bicycle or low-speed electric scooter within the Borough shall be strictly prohibited.
- c. In the event that a low-speed electric bicycle or low-speed electric scooter is deemed to be abandoned by the Borough, the Police Department shall have the authority to remove and dispose of the low-speed electric bicycle or low-speed electric scooter if not otherwise removed.

7-45.7 Enforcement.

- a. The provisions of this Article shall be enforceable by the Borough of Ramsey Police Department.
- b. Nothing in this Ordinance shall be construed preclude, restrict or limit any law enforcement officer from exercising their lawful authority and discretion in the enforcement of this Ordinance in accordance with the rules and regulations of the Borough of Ramsey Police Department as well as Attorney General's Office and County Prosecutor's Office directives and standard and accepted police practices.

- c. Violations of the provisions of this Article may be enforced in any lawful manner the Borough of Ramsey Police Department may deem appropriate, including but not limited to in accordance with the provisions of this Article independently and/or in combination with Title 39 of the New Jersey Revised Statutes and other applicable law.

7-45.8. Violations and Penalties.

Notwithstanding and in addition to any violations or penalties authorized by law, this Article or the Borough Code, any person found to be in violation of any provision of this Article shall, upon conviction, be subject to the following:

- a. **Operators Over Eighteen (18).** Any person eighteen (18) years of age or older who operates a low-speed electric bicycle or low-speed electric scooter in violation of this Article, or who otherwise fails to comply with the requirements of this Article, shall be subject to a fine of not more than \$250.00 for the first offense, a fine of not more than \$500.00 for the second offense and a fine of not more than \$ 1,000.00 for a third or subsequent offense.
- b. **Operators Under Eighteen (18).**
 - 1. Upon a first offense, the parent(s) or legal guardian(s) of any person under eighteen (18) years of age who operates a low-speed electric bicycle or low-speed electric scooter in violation of this Article, or who otherwise fails to comply with the requirements of this Article, shall be subject to a fine of not more than \$250.00 and/or the potential impoundment of the low-speed electric bicycle or low-speed electric scooter for a period of not more than seven (7) days .
 - 2. Upon a second offense, the parent(s) or legal guardian(s) of the non -adult offender shall be subject to a fine of not more than \$500.00 and/or the impoundment of the low-speed electric bicycle or low-speed electric scooter for a period of not less than seven (7) days, nor more than sixty (60) days. Any low-speed electric bicycle or low-speed electric scooter impounded by the Borough of Ramsey Police Department shall only be releasable to the parent(s) or legal guardian(s) of the non-adult offender.
 - 3. Upon a third or subsequent offense, the parent(s) or legal guardian(s) of the non -adult offender shall be subject to a fine of not more than \$1,000.00, and the impoundment of the low-speed electric bicycle or low-speed electric scooter pending a hearing as to the continued impoundment of the low-speed electric bicycle or low-speed electric scooter in accordance with standard practice and procedures. Any low-speed electric bicycle or low-speed electric scooter impounded by the Borough of Ramsey Police Department shall only be releasable to the parent(s) or legal guardian(s) of the non-adult offender.
 - 4. In the event the Borough Ramsey Police Department cannot determine the name and address of the parent(s) or legal guardian(s) of any person under eighteen (18) years of age who violates any of the provisions of this Article, the low-speed electric bicycle or low-speed electric scooter shall be seized or impounded pending identification and notification of the parent(s) or legal guardian(s), and

the non -adult offender shall be summoned to appear at the Borough of Ramsey Police Department with his or her parent(s) or legal guardian(s), at which time a summons may be issued to the parent(s) or guardian(s) for the appropriate offense(s). Provided it does not constitute a second or subsequent offense for which the low-speed electric bicycle or low-speed electric scooter would be subject to impoundment, the Borough of Ramsey Police Department will arrange for the return of the low-speed electric bicycle or low-speed electric scooter to the parent(s) or legal guardian(s) of the non-adult offender upon the parent(s) or legal guardian(s) responding to Police Headquarters and providing the appropriate identification. In the event the parent(s) or legal guardian(s) of the non-adult offender shall fail to respond within thirty (30) days of the seizure or impoundment of the low-speed electric bicycle or low-speed electric scooter, the Borough may proceed in accordance with standard police practices with respect to abandonment, unclaimed property or other appropriate disposition.

5. In any instance in which the Police Department deems it necessary to utilize the services of a licensed towing operator to assist with and effectuate an impoundment in accordance with this Article, any and all fees and costs imposed for the impoundment, storage and removal shall be the responsibility of the parent(s) or guardian(s) of the non-adult offender.

SECTION 2. Repealer.

All Ordinances or parts of Ordinance inconsistent or in conflict with this Ordinance are hereby repealed as to said inconsistencies and conflicts.

SECTION 3. Severability.

If the provisions of any section, part of any section, or clause or phrase of this Ordinance is for any reason held to be invalid or unconstitutional, said decision shall not affect the remaining provisions of this Ordinance. The Governing Body of the Borough of Ramsey declares that it would have passed the Ordinance and each section and subsection thereof, irrespective of the fact that any one or more of the subsections, sentences, clauses or phrases may be declared unconstitutional or invalid

SECTION 4. Effective Date

This Ordinance shall take effect immediately upon passage and publication as required by law.

Introduced:

Passed:

Meredith Bendian, Clerk

Deirdre Dillon, Mayor